

PACKET #1

SIMPLIFIED DISSOLUTION OF MARRIAGE

The Simplified Dissolution of Marriage is possible for couples only when:

1. At least one of the parties has been a resident of the State of Florida for six (6) months immediately before the filing of the papers.
2. BOTH parties agree that the marriage is irretrievably broken and want to end the marriage.
3. BOTH parties must be able to appear:
 - A. Before the Deputy Clerk to sign the papers, and
 - B. Before the judge at the final hearing.
4. There are no minor (under 18 years of age) or dependent children together.
5. The wife is not pregnant.
6. The parties have made provisions about the division of their assets and debts (what they own and what they owe).

Please be advised that you will be required to pay a \$10.50 fee in addition to the original filing fee to obtain your Final Judgment of Dissolution of Marriage and record it with the Bureau of Vital Statistics.

NOTE: The Family Law Financial Affidavit included in this packet is for those individuals whose income is under \$50,000 per year. If your income exceeds that figure, you can use this packet; however, you must use the Supreme Court Family Law Financial Affidavit-Long Form. The long form is not included in this packet.

This packet has been designed to provide forms and instructions approved by the Florida Supreme Court to individuals who have chosen to represent themselves. This packet contains most, but possibly not all of the forms and instructions you may need to represent yourself. You may find all Supreme Court approved forms on the Internet at www.flcourts.gov, or at your local law library. If you do not understand the forms or your legal rights or obligations, you should consult with an attorney.

It is **your responsibility to read and understand this entire packet before proceeding further**. After you have read and understand the instructions, and after you have filed the appropriate forms, contact the Family Division Self-Help Office by filing a **FORM A** to obtain a court date. Use of these forms does not constitute representation by courthouse personnel. Courthouse personnel **cannot** give you legal advice nor can they help you complete these forms. The forms contained in this packet and the directions provided are simplified to meet the general needs of the majority of pro se litigants. This packet may not have the forms necessary for every case, and this information booklet may not address every party's particular situation. The directions given are only basic guidance for completing the forms. They are not explanations of all rights and duties associated with family law practice.

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NO REFUNDS**